

Breach of Duty (1)

Recap

Negligence has three elements:

1. D owed C a duty of care;
2. D breached that duty;
3. D's breach caused damage which is not too remote.



Breach of Duty: Overview

The reasonable person



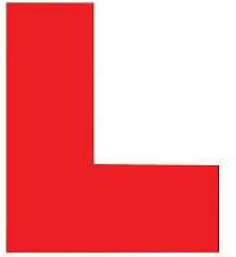
- ❑ “Negligence is the omission to do something which a reasonable man ... would do, or doing something which a . . . reasonable man would not do” (*Blyth v Birmingham Waterworks* (1856) 11 Ex 781)
- ❑ “the man on the Clapham omnibus” (*McQuire v Western Mornings News Co Ltd* [1903] 2 KB 100)
- ❑ “the reasonable person is capable of making mistakes and errors of judgment, of being selfish, of being afraid” (Harper, James, & Gray, *The Law of Torts*)

The function of the reasonable person



- ❑ “a legally deregulated zone in which the many and varied underlying reasons are to be confronted by the decision-maker in their ordinary form, and applied direct, unmediated by law”
- ❑ “The reasonable person embodies no particular standard of justification, not even a socially prevailing standard.”
- ❑ “[I]n most cases reasonable prudence is in fact common prudence; but strictly it is never its measure. . . . Courts must in the end say what is required; there are precautions so imperative that even their universal disregard will not excuse their omission” (Learned Hand J)

(J Gardner, ‘The Many Faces of the Reasonable Person’)



The objective standard

Nettleship v Weston [1971] 2 QB 691

- ❑ D, a learner driver, crashed the car, injuring the driving instructor, C.
- ❑ “The standard of care ... is measured objectively by the skill to be expected of an experienced, skilled and careful driver” (Denning LJ)
- ❑ “The learner driver may be doing his best, but his incompetent best is not good enough” (Denning LJ)



The objective standard

Wilsher v Essex Health Authority [1987] 1 QB 73

- Standard of care for a junior doctor is the same as any other doctor.
- A person holding themselves out to the world as a 'doctor' or a 'driver' is held to the same standards, regardless of their level of experience.

Justifying the objective standard

- “If, for instance, a man is born hasty and awkward, is always having accidents and hurting himself or his neighbors, no doubt his congenital defects will be allowed for in the courts of heaven, but his slips are no less troublesome to his neighbors than if they sprang from guilty neglect.” (OW Holmes)
- “According to corrective justice theory, the point of [the objective] standard is to judge the behaviour of the defendant ... in terms of a standard fair as between the parties.” (A Beever)



Factors affecting the standard of care

Attributes of D

1. Children
2. Incapacity
3. Profession
4. Common practice

Balancing external factors

1. Probability of harm
2. Gravity of harm
3. Cost of precautions
4. Social utility of D's conduct
5. Context



Balancing External Factors

Balancing



“[T]he question of what amounts to “such care as in all the circumstances of the case is reasonable” depends upon assessing ... not only the likelihood that someone may be injured and the seriousness of the injury which may occur, but also the social value of the activity which gives rise to the risk and the cost of preventative measures. These factors have to be balanced against each other.”

(Lord Hoffmann, *Tomlinson v Congleton BC*)

The factors

1. Probability of harm
2. Gravity of harm
3. Cost of precautions
4. Social utility of D's conduct
5. Context

1. Probability of harm



Bolton v Stone [1951] AC 850

- ❑ Balls hit out of grounds only 6 times in 30 years
- ❑ “An ordinarily careful man does not take precautions against every foreseeable risk ... He takes precautions against risks which are reasonably likely to happen” (Lord Oakley)

1. Probability of harm



The Wagon Mound (No 2) [1967] 1 A.C. 617

- ❑ D allowed oil to spill into Sydney Harbour while refueling. Very small chance of fire. But a fire happened.
- ❑ “[T]here was no justification whatever for discharging the oil into Sydney Harbour. ... [T]here could have been no question of balancing the advantages and disadvantages.”
- ❑ Even a very remote risk should be eliminated if doing so “presented no difficulty, involved no disadvantage, and required no expense.”

2. Gravity of harm



Paris v Stepney BC [1951] AC 367

- ❑ D had one eye. He was not given goggles for work. He lost the one good eye.
- ❑ Goggles were “obviously necessary when a one-eyed man was put to [this] kind of work”.
- ❑ The reasonable man considers all foreseeable consequences, including the known characteristics of C, and the gravity of harm.

3. Cost of precautions



Bolton v Stone [1951] AC 850

- “It seems to me that a reasonable man, taking account of the chances against an accident happening, would not have felt himself called upon either to abandon the use of the ground for cricket or to increase the height of his surrounding fences” (Lord Radcliffe)
- “The only practical way in which the possibility of danger could have been avoided would have been to stop playing cricket on this ground.” (Lord Normand)

3. Cost of precautions



Latimer v AEC Ltd [1953] AC 643

Facts:

- ❑ D's factory flooded, making the floor slippery.
- ❑ D spread sawdust over most of the floor, but did not have enough sawdust to cover the whole floor.
- ❑ D was faced with closing the factory until extra sawdust arrived, or taking the risk that someone might slip and be injured on the unprotected part of the floor.
- ❑ D decided to keep the factory open. C slipped and was injured.

3. Cost of precautions



Latimer v AEC Ltd [1953] AC 643

Held:

- “The absence of any evidence that anyone in the factory during the afternoon or night shift, other than the plaintiff, slipped or experienced any difficulty or that any complaint was made by or on behalf of the workers all points to the conclusion that the danger was in fact not such as to impose upon a reasonable employer the obligation [to close the factory].” (Lord Tucker)

4. Utility of conduct



Watt v Hertfordshire County Council [1954] 1 WLR 835

- ❑ ‘Lifting jack’ needed in emergency for firefighting. Only vehicle available was ordinary lorry to which the jack couldn’t be properly secured. Jack slipped and injured C.
- ❑ “[Y]ou must balance the risk against the end to be achieved. If this accident had occurred in a commercial enterprise without any emergency there could be no doubt that [C] would succeed. But the commercial end to make profit is very different from the human end to save life or limb. The saving of life or limb justifies taking considerable risk...” (Denning LJ)

4. Utility of conduct



Tomlinson v Congleton Borough Council [2003] UKHL 47

Facts:

- ☐ D (a BC) owned a lake.
- ☐ Notices reading “dangerous water: no swimming”.
- ☐ Swimming was known to continue anyway, notices ignored.
- ☐ C dove into shallow water and broke his neck.

4. Utility of conduct



Tomlinson v Congleton Borough Council [2003] UKHL 47, per Lord Hoffmann

- “The majority of people who went to the beaches to sunbathe, paddle and play with their children were enjoying themselves in a way which gave them pleasure and caused no risk to themselves or anyone else. This must be something to be taken into account in deciding whether it was reasonable to expect the council to destroy the beaches.”
- “If people want to climb mountains, go hang-gliding or swim or dive in ponds or lakes, that is their affair.”

4. Utility of conduct



Tomlinson v Congleton Borough Council [2003] UKHL 47, per Lord Hoffmann

“It is of course understandable that organisations like the Royal Society for the Prevention of Accidents should favour policies which require people to be prevented from taking risks. ... But they do not have to consider the cost, not only in money but also in deprivation of liberty, which such restrictions entail...the balance between risk on the one hand and individual autonomy on the other is not a matter of expert opinion. It is a judgment which the courts must make and which in England reflects the individualist values of the common law.”

4. Utility of conduct

Compensation Act 2006

“Section 1 - Deterrent effect of potential liability

A court considering a claim in negligence ... may, in determining whether the defendant should have taken particular steps to meet a standard of care ... have regard to whether a requirement to take those steps might—

(a) prevent a desirable activity from being undertaken at all, to a particular extent or in a particular way, or

(b) discourage persons from undertaking functions in connection with a desirable activity.”

4. Utility of conduct

Social Action, Responsibility and Heroism Act 2015

“s1 - When this Act applies

This Act applies when a court, in considering a claim that a person was negligent or in breach of statutory duty, is determining the steps that the person was required to take to meet a standard of care.

s2 - Social action

The court must have regard to whether the alleged negligence or breach of statutory duty occurred when the person was acting for the benefit of society or any of its members.

s3 - Responsibility

The court must have regard to whether the person, in carrying out the activity in the course of which the alleged negligence or breach of statutory duty occurred, demonstrated a predominantly responsible approach towards protecting the safety or other interests of others.

s4 - Heroism

The court must have regard to whether the alleged negligence or breach of statutory duty occurred when the person was acting heroically by intervening in an emergency to assist an individual in danger.”

5. Context

Wooldridge v Sumner [1963] 2 QB 43

Facts:

- ❑ During a horserace, D, a jockey, rode his horse very fast around a corner.
- ❑ While trying to rescue someone from the horse's path, C was hit by the horse and suffered serious injury.
- ❑ C claimed D had ridden negligently fast.



5. Context

Wooldridge v Sumner [1963] 2 QB 43

“A person attending a game or competition takes the risk of any damage caused to him by any act of any participant done in the course of the game, notwithstanding that such an act may involve an error of judgment, unless the participant’s conduct is ... reckless”

(Diplock LJ)



5. Context



Wooldridge v Sumner [1963] 2 QB 43

“In my opinion “too fast” in these circumstances would only be an error of judgment of a highly competent rider all out to succeed. It is no doubt a misfortune for a skilled batsman to be bowled or caught in a supreme effort to hit a six. It is also a misfortune if, on the other hand, he succeeds in hitting a six and the ball hits someone over the boundary. The three-quarter who dives at speed over the line for a try at Twickenham, or on occasions at Wembley, or the opponent who dives into a tackle to prevent a try may and sometimes does roll over and come into heavy contact with the surrounding barrier sometimes to his own hurt and to the possible injury of an adjacent spectator. No court or jury would, I think, condemn such endeavour as negligent.”

(Sellers LJ)

The factors

You need to balance these factors against one another:

1. Probability of harm
2. Gravity of harm
3. Cost of precautions
4. Social utility of D's conduct
5. Context



LAW OF TORT